TRANSPARENCY INTERNATIONAL
the global coalition against corruption



THE STATE OF ANTI-CORRUPTION
ASSESSING GOVERNMENT ACTION IN THE AMERICAS

A study on
the implementation of the
Summit of Americas' mandates

www.transparency.org

Transparency International is the global civil society organisation leading the fight against corruption. Through more than 90 chapters worldwide and an international secretariat in Berlin, Germany, TI raises awareness of the damaging effects of corruption and works with partners in government, business and civil society to develop and implement effective measures to tackle it.

Author: Natalia Torres for Transparency International
Coordination: Marta Erquicia and Ximena Salazar
Implemented at national level by: Poder Ciudadano, Transparencia Bolivia, Transparency International Canada, FUNDE, Transparencia Mexicana, Etica y Transparencia, Transparencia Paraguay, Proética y Trinidad and Tobago Transparency Institute

© 2009 Transparency International. All rights reserved.
ISBN: 978-3-935711-24-1

Table of Contents

	Introduction	1
1	The fight against corruption in the Summit of the Americas	3
2	From words to action: compliance of the mandates of the Summit of the Americas	5
2.1	Signing and ratifying of treaties	5
2.2	Presentation of reports about compliance with anti-corruption mandates	5
2.3	Implementation of the recommendations from the Committee of Experts provided in the first two rounds of the MESICIC	7
2.3.1	Implementation of the recommendations from the first round	8
2.3.2	Implementation of the recommendations from the second round	11
2.4	Participation of civil society	12
2.5	Compliance of mandates at regional level	13
3	Conclusions	16
4	What measures need to be taken to advance and strengthen the implementation of the mandates of the summits?	19
	Annex: Compilation of mandates on anti-corruption from Summits and Plans of Action	**21**

INTRODUCTION

The fight against corruption is of vital importance for "securing our citizens' future by promoting human prosperity, energy security and environmental sustainability", theme of the V Summit of the Americas. Corruption has been described as one of the greatest problems of our time, since it undermines political institutions, contributes to social exclusion, hinders sustainable economic development, has a negative effect on the efficiency of public administration –as it implies the loss or poor allocation of resources- and has devastating consequences for the more vulnerable sectors of our societies1.

The American hemisphere is not exempt from corruption. According to Transparency International (TI): "out of the 32 countries of America included in TI's 2008 Corruption Perceptions Index (CPI), 22 obtained a score below 5 out of a total of 10, which suggests a grave problem of corruption. 11 of these countries did not score higher than three points, suggesting rampant levels of corruption."2 Other institutions like the World Bank Institute report similar data. Its governance indicators for the OAS member countries also point toward the existence of high levels of corruption3.

This problem of corruption goes hand in hand with the high level of inequity that has not been overcome by the economic growth experienced by the region in the last few years. Today, nearly 200 million people, a third of the population in the region, live in poverty and 13 per cent in extreme poverty4. Weak institutions, low levels of governance and the influence of particular interests negatively affect efforts to promote equitable and sustainable human development. This situation must change if we want to achieve the Millennium Development Goals and therefore improve the quality of life of the citizens of our countries.

---

1 See Klitgaard, R., (1988), Controlling Corruption, University of California Press; and Warren, M., (2004) "What Does Corruption Mean in a Democracy?," American Journal of Political Science 48, no. 2, pp. 328-43

2 The CPI scores countries from '10' to '0', with '10' being the lowest perception of corruption and '0' the highest www.transparency.org/policy_research/surveys_indices/cpi/2008/regional_highlights_factsheets. The calculation of the regional average is of our own elaboration based on the Corruption Perceptions Index from TI

3 This evaluates six indicators, with scores that range from -2,5 to 2,5, where 2.5 is an indication of good governance, and the lowest level (-2,5) an indication of poor governance. The average value of the member countries of the OAS in the indicator related to the level of corruption existing in the States is 0,053. The calculation of the regional average is of our own elaboration based on the study produced by the World Bank Institute web.worldbank.org/WBSITE/EXTERNAL/WBI/EXTWBIGOVANTCOR/0,,contentMDK:20771165~menuPK:1866365~pagePK:64168445~piPK:64168309~theSitePK:1740530,00.html

4 idbdocs.iadb.org/wsdocs/getdocument.aspx?docnum=1885962

Corruption also has a direct impact –and many times irreversible- on the environment and on the communities sustained through the use of natural resources. In the best of cases, these resources are used for the development of a country and its citizens, but they can also be poorly administered and be utilized to feed state capture and the abuse of human rights.

This alarming context of corruption, poverty and inequity is being affected negatively by the international financial crisis. This crisis has slowed down the growth of the Americas, has increased unemployment, undermined access to credit and considerably reduced the level of remittances coming from abroad –an important source of income in many countries. Although it is true that the full effects of the crisis have not yet been felt, it is expected that they will have a negative impact in the most vulnerable sectors, especially if we consider that besides the reduction of access to credit and fiscal revenue, problems may arise in states with few tools to respond properly to the demand for infrastructure and social expenditure. It is important that the states respond to these needs with social programmes based on integrity, transparency and accountability.

For all these reasons, the fight against corruption has become especially relevant: today, more than ever, the states must ensure that public resources are administered with efficiency and transparency, allowing citizens access to public information and promoting active citizen participation.

Aware of the relevance of the fight against corruption in the hemisphere, the Heads of State of the countries that comprise the Organization of American States (OAS) have identified the fight against corruption as a priority for the regional agenda and have assumed commitments to advance its reduction in the four Summits of the Americas that have taken place so far. Without a doubt, recognizing the problem and declaring possible courses of action to solve it is a positive thing. However, as we can see, regional indicators continue to reveal disappointing results.

In view of the V Summit of the Americas, it became important for TI to know and evaluate to what degree the commitment of the different states to the fight against corruption is materializing. The objective of this report is to evaluate the degree of compliance in the implementation of the anti-corruption mandates from the declarations and plans of action of the previous Summits of the Americas, placing especial emphasis in the advances made in the implementation of the Inter-American Convention against Corruption (IACAC), a legal instrument that integrates and condenses the regional anti-corruption agenda.

The report was produced by Transparency International with the collaboration of nine of its chapters and national contacts5, which contributed their perspective about the status of implementation at the national level, and with the financial support of the World Justice Project of the American Bar Association.

The methodology of the study is qualitative. The main source of information comes from data published in the websites of the OAS and from information collected by the national chapters of TI. The design of the questionnaire and the analysis of the information obtained has enabled us to understand how each of the countries being evaluated has applied certain provisions of the IACAC and to evaluate the performance and accessibility of those institutions operating within the Inter-American system that are involved in the fight against corruption. For the evaluation at the national level, we have focused on the status of the implementation of the recommendations that each state has received as part of its evaluation within the monitoring mechanism of the IACAC.

This executive summary contains the most relevant information, the most significant results and the most important conclusions in order to compose a hemispheric picture of the degree of advancement in the fight against corruption6.

1 THE FIGHT AGAINST CORRUPTION IN THE SUMMIT OF THE AMERICAS[7]

Ever since the Summits of the Americas began in 1994, the fight against corruption has been one of their central issues. Its importance has been reflected in the resulting Declarations and Plans of Action from each Summit[8].

In the first Summit of the Americas (Miami, 1994), the Heads of State identified the fight against corruption as a fundamental element for democratic institutionalization. In the resulting Plan of Action from this Summit, the countries pledged, among other things, to promote public

5 The national chapters and contacts of TI are independent organizations registered at national level that belong to the TI movement. Poder Ciudadano (Argentina), Transparencia Bolivia, Transparency International Canada, FUNDE (El Salvador), Transparencia Mexicana, Grupo Cívico Etica y Transparencia (Nicaragua) Transparencia Paraguay, Proética (Peru) and the Trinidad and Tobago Transparency Institute

6 The full report, in Spanish only, is available at www.transparency.org/tilac/convenciones

7 This section has been elaborated based on the information presented in the last two hemispheric reports produced by the Committee of Experts of the MESICIC (www.oas.org/juridico/spanish/mesicic_informes.htm), and the text of the declarations and plans of action of the Summits of the Americas. (www.oas.org/juridico/spanish/mesicic_docs_sp.htm)

8 The anti-corruption mandates stated in the declarations of the Summits of the Americas and the corresponding plans of action are included in the Annex

debate about government issues, guarantee proper supervision of governmental functions and access to public information, establish norms about conflict of interests, unlawful profits and bribery, and to promote a hemispheric approach about what is considered an act of corruption.

These first mandates and suggested actions accelerated the creation of a hemispheric legal instrument that would include all the themes considered by the Heads of State and that would become a common intervention agenda for the fight against corruption. As a result of the work of governmental and non-governmental actors, the Inter-American Convention against Corruption was adopted by the member States of the OAS in March of 1996 and thus became the first regional instrument of its kind. Ever since, the IACAC has been the frame of reference for compliance of the anti-corruption mandates established in the various Summits, through the condensation of a wide range of measures related to prevention, cooperation and assistance.

In the second Summit (Santiago, 1998) governments pledged to support the Inter-American Program of Cooperation to Fight Corruption9 and to promote the ratification and adequate follow-up to the IACAC. They also agreed, among other things, to adopt internal legislation that would obligate high-ranking public officials to present sworn affidavits of personal property, a measure already included in the IACAC.

The Quebec Summit (2001) insisted on the need to sign and ratify the Inter-American Convention, and became vital for establishing a mechanism to monitor its implementation. This commitment was materialized in the 2001 General Assembly of the OAS, where the Follow-up Mechanism of the Inter-American Convention against Corruption (MESICIC)10 was adopted.

In 2004, a Special Summit of the Americas was held in Monterrey. Like never before, the promotion of transparency, accountability and the fight against corruption had, on this occasion, a privileged place in the meetings of the Heads of State of the Hemisphere. The Declaration of Nuevo Leon added new commitments to the fight against corruption and established concrete measures to move the agenda forward, like promoting and guaranteeing the right to access public information.

The IV Summit (Mar del Plata, 2005) repeated the call to implement the Convention and to identify concrete initiatives for cooperation and exchange of experiences between the countries in order to promote transparency in the hemisphere.

9 www.oas.org/Juridico/spanish/Prointer.htm

10 This mechanism is composed by experts from each one of the countries that are part of it and its main responsibility is to report about the advances made in their countries on the implementation of the IACAC and to evaluate the achievements of their peers based on a specific methodology www.oas.org/juridico/spanish/mesicic_intro_sp.htm

2 FROM WORDS TO ACTION: COMPLIANCE OF THE MANDATES OF THE SUMMITS OF THE AMERICAS

Fifteen years since the process of the Summits of the Americas began, Transparency International considered it important to know if the swtates' promises regarding the fight against corruption were being translated into action. For that, an evaluation was conducted concerning the main advances in the compliance of the mandates of the previous four Summits of the Americas. TI based this analysis on different indicators, like the status of ratification of anti-corruption conventions, the participation of the states in the monitoring mechanism and especially the level of implementation of the recommendations provided by the Committee of Experts within the framework of the MESICIC.

2.1 SIGNING AND RATIFICATION OF TREATIES

A basic way to determine whether declared commitments are being complied with is to determine which countries have signed and ratified both the Inter-American Convention against Corruption as well the United Nations Convention against Corruption (UNCAC, 2003).

All Member States of OAS[11], except Barbados, are part of the Inter-American Convention. Of all these, all except Antigua and Barbuda, Dominica, St. Kitts and Nevis and St. Lucia are part of the MESICIC.

The Declaration of Nuevo Leon expressed the interest in the new global anti-corruption treaty: "The United Nations Convention against Corruption is a valuable instrument to confront this scourge, and therefore we commit to consider signing and promoting its ratification." All the states of the Americas are part of this Convention, except Barbados, Haiti (signed but not ratified), Belize, Grenada, St. Vincent and Suriname[12].

2.2 PRESENTATION OF REPORTS ABOUT COMPLIANCE WITH ANTI-CORRUPTION MANDATES

One of the strategies utilized to verify the political will of the states regarding the commitments made at the Summits was to analyze the reports presented by the countries to the Summit Implementation Review Group (SIRG), the body in charge of collecting information about actions conducted at national level, systematizing the information and presenting the reports at ministerial level.

11 Cuba is not a member of the OAS

12 To verify the degree of adhesion to the treaty, see www.unodc.org/unodc/en/treaties/CAC/signatories.html

According to the information available in the website of the SIRG[13], the provision of information about compliance of the mandates from the Summits is very irregular. While some countries presented five or more reports of advances[14], others have presented between three and four[15], others only one or two reports[16], and others not a single one[17]. Now, if the content of what is being reported from the countries is analyzed, the difference is even more significant[18]. While some countries provided only one paragraph regarding actions developed to fight corruption, others presented reports that were more complete and more in line with the information provided in the MESICIC. This could be an indication of the high degree of disconnection and lack of articulation between the two monitoring and follow-up bodies (SIRG and Committee of Experts), as well as between the bodies in charge of following-up the issue at national level: national experts (Committee of Experts of the IACAC) and national coordinators (SIRG).

As a curious note on this issue, in the First Meeting of the Conference of States Parties to the MESICIC, it was requested from its Technical Secretariat that "…it would continue promoting cooperation and exchange of information between the Committee of Experts and other mechanisms for the evaluation or follow-up of international instruments or commitments.[19]" However, nothing is mentioned about coordination within the OAS with relevant organizations like the Office of the Special Rapporteur on Freedom of Expression or the SIRG.

Besides the lack of coordination at national and regional levels, there is no standardization or uniformity in regard to what the countries should present to the SIRG. This is, without a doubt, an issue that should be addressed in order to achieve greater inter-institutional coordination both at national and at regional level. Because of the lack of standardization, it is left to the discretion of the countries to decide which commitments to report about: while some countries present a general overview of the actions conducted on the issue, others present only those actions carried out in order to comply with the commitments assumed in the last plan of action of a given Summit, but not the previous ones. This creates difficulties for monitoring the implementation of the mandates and makes it almost impossible to compare different countries.

13 www.summit-americas.org/SIRG/SIRG-MAIN-documents-spanish.htm
14 Canada, Colombia and Peru
15 Argentina, Brazil, El Salvador, Panama and United States.
16 Bolivia, Dominican Republic, Mexico, Paraguay, Trinidad and Tobago, Uruguay, Venezuela, Bahamas, Belize, Chile, Costa Rica, Ecuador, Grenada, Guatemala, Guyana, Honduras, Jamaica, Nicaragua, St. Vincent and the Grenadines, Suriname, Haiti, St. Lucia and St Kitts and Neves
17 Barbados, Antigua and Barbuda, and Dominica
18 For this report, we analyzed the last reports presented only by the countries that will be later analyzed in the section about recommendations: Argentina, Bolivia, Canada, El Salvador, Nicaragua, Mexico, Paraguay, Peru, and Trinidad and Tobago
19 Conference of States Parties, conclusions and recommendations of concrete measures to strengthen the MESICIC, page 6, available in www.oas.org/juridico/spanish/segu_conf_concl.pdf

2.3 IMPLEMENTATION OF THE RECOMMENDATIONS FROM THE COMMITTEE OF EXPERTS PROVIDED IN THE FIRST TWO ROUNDS OF THE MESICIC

This section evaluates the implementation of the mandates of the Summit related to the fight against corruption, and more concretely, how the states have implemented the recommendations provided in the first and second rounds of the monitoring mechanism of the IACAC.

Since the IACAC came into effect more than 10 years ago, 33 out of the 34 members of the OAS have ratified the IACAC. Out of these, 28 participate within the MESICIC. The implementation of the Convention has been formally advanced thanks to the creation and institutionalization of the Committee of Experts, the body in charge of monitoring the degree of advancement in the implementation of the content of the IACAC by the States Parties. At the time of preparation of this report, two evaluation rounds have been conducted about the degree of advance in the implementation of the content of the Convention. In each of these, certain parts of the Convention have been evaluated, and the States have received recommendations to improve the manner in which they are implementing the IACAC. For that purpose, an evaluation has been conducted in nine countries of the Americas that reported on the advances registered in their countries on the matter.

TI's chapters and national contacts in nine countries20 evaluated the actions conducted by their government in order to comply with each recommendation at three levels: they provided information about the existence of measures on the recommended issue, evaluated the sufficiency of the adopted measure, and provided information about the implementation21.

One important point regarding the methodology of the report has to do with the lack of a baseline for conducting the evaluations. What is evaluated is the implementation of measures related to the recommendations and not the final status achieved. This means that, a States Party that is far behind in terms of institutional quality could have implemented a great amount of measures, and a country with high level of development in the matter, very few. This difference in terms of efforts says nothing about the final situation they are in. For example, a country that has had a law related to access to information for 50 years perhaps reported that they haven't taken any measures to improve the provision of information. Another country has perhaps introduced a bill in Congress for its debate. The fact that the second country has taken

20 The selection of the countries was made based on the voluntary participation of the chapters of Transparency International. Argentina, Bolivia, Canada, El Salvador, Mexico, Nicaragua, Paraguay, Peru, and Trinidad and Tobago

21 Complete information about each country is presented in the extended version of this report which will be published in Spanish on TI's website: www.transparency.org/tilac/convenciones

this measure does not mean that the recognition of the right has reached the levels found in the other state[22].

2.3.1 IMPLEMENTATION OF THE RECOMMENDATIONS FROM THE FIRST ROUND

In the section regarding the first round, each recommendation will be analyzed from the perspective of the report from the Committee of Experts in the Second Hemispheric Report and from the information provided by each one of the chapters[23]. It is worth noting that the hemispheric reports speak about measures and the chapters about recommendations. The Committee of Experts elaborates recommendations for each issue analyzed. Some of these, to be put into practice, require the application of certain measures suggested in the experts' evaluation. The information provided in the hemispheric reports corresponds to this operational level, while the information from the chapters analyzed here corresponds to the level of recommendations[24].

According to the Second Hemispheric Report[25] and regarding the regulation of **conflicts of interest** "145 measures were recommended. No information on progress with respect to implementation was reported for 60 of those measures (41%); 64 of them (44%) require additional attention; and the remaining 21 (15%) were satisfactorily considered[26]." Regarding the information provided by the chapters of the nine countries, out of the 9 recommendations issued by the Committee about regulations on conflict of interests, for 6 cases (67%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of that total of 6, 3 of them (50%) were evaluated as being sufficient and 3 as insufficient. In 4 cases, difficulties were reported for the effective implementation of the measures.

In their evaluation regarding advances in the implementation of measures to **improve the conservation and use of resources**, the Committee of Experts reported that "71 measures were recommended. No information on progress with respect to implementation was reported for 23 of them (32%); 33 of them (47%) require additional attention; and the remaining 15 (21%)

22 In regard to the matrix, it is worth clarifying that it was produced from the recommendations issued in the reports adopted by the Committee of Experts in the first and second rounds. The recommendations issued by the Committee as follow-up to the recommendations were not considered to elaborate the matrix but they were suggested to the chapters for their consideration during the elaboration of their responses

23 Note that while the Committee reports on the total of recommendations issued to the 27 countries that are part of the mechanism, the nine chapters provided information exclusively about their countries

24 Except FUNDE, which reported on the Committee's recommendations

25 www.oas.org/juridico/spanish/mec_ron2_inf_hemis.pdf

26 Committee of Experts, Second Hemispheric Report, p. 29

were satisfactorily considered[27]". According to the information provided by the chapters, out of the 11 recommendations issued by the Committee about the preservation and use of resources, for 6 cases (57%), it is reported that there are measures in existence in order to comply with the Committee's recommendations. Out of those, 4 (66%) were evaluated as being insufficient.

Regarding the obligation of government officials to **report to the proper authorities any acts of corruption** known to them, the Committee of Experts reported that "84 measures were recommended. No information on progress with respect to implementation was reported for 36 of them (43%); 36 of them (43%) require additional attention; and the remaining 12 (14%) were satisfactorily considered[28]". Also, if we consider the information provided by the chapters, out of 11 recommendations issued by the Committee on the subject, for 8 (72%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of these 8, five (62.45%) were evaluated as being insufficient. In 7 cases, difficulties were reported for the effective implementation of the measures.

According to the Second Hemispheric Report, in regard to the **systems for declaring income, assets and liabilities**, the Committee reported that "...131 measures were recommended. No information on progress with respect to implementation was reported for 45 of them (34%); 70 of them (54%) require additional attention; and the remaining 16 (12%) were satisfactorily considered[29]." The information provided by the chapters reflects that out of the total of 13 recommendations issued by the Committee on the subject, for 10 cases (76%) there are reported measures in existence to comply with the Committee's recommendations. Out of these 10, 8 (80%) were evaluated as being insufficient. In 7 cases, difficulties were reported for the effective implementation of the measures.

The Committee of Experts reported that regarding the **strengthening of oversight bodies**, "51 measures were recommended. No information on progress with respect to implementation was reported for 16 of them (31%); 29 of them (57%) require additional attention; and the remaining 6 (12%) were satisfactorily considered[30]." Regarding the information provided by the chapters of the nine countries, out of the total of 9 recommendations issued by the Committee on the subject, for 6 cases (67%) it is reported that there are measures in existence for complying with the Committee's recommendations. Out of those 6 cases, 4 of the existing measures (67%) were evaluated as being insufficient. Also in 4 cases, difficulties were reported regarding the effective implementation of the measures.

27 Ibid. p. 29
28 Ibid. p. 30
29 Ibid. p. 30
30 Ibidem, p. 30

With respect to mechanisms for **access to information**, and according to the Second Hemispheric Report, "83 measures were recommended. No information on progress with respect to implementation was reported for 38 of them (46%); 32 of them (38%) require additional attention; and the remaining 13 (16%) were satisfactorily considered[31]." The chapters reported that out of the total of 10 recommendations issued by the Committee, for 9 cases (90%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of those 9 cases, 7 (78%) were evaluated as being insufficient. In 6 cases, difficulties were reported for the effective implementation of the measures.

Regarding **mechanisms for consultation**, "62 measures were recommended. No information on progress with respect to implementation was reported for 26 of them (42%); 23 of them (37%) require additional attention; and the remaining 13 (21%) were satisfactorily considered[32]." Regarding the information provided by the chapters, out of the total of 12 recommendations issued by the Committee on the subject, for 7 cases (58%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of these 7, 6 (86%) were evaluated as being insufficient. In 5 cases, difficulties were reported for the effective implementation of the measures[33].

According to the Committee of Experts' report about the **mechanisms to encourage the participation of civil society in public administration** "...69 measures were recommended. No information on progress with respect to implementation was reported for 31 of them (45%); 25 of them (36%) require additional attention; and the remaining 13 (19%) were satisfactorily considered[34]." Regarding the information provided by the chapters on the nine countries, out of the total of 9 recommendations issued by the Committee on the subject, for 6 cases (67%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of that total of 6 cases, 5 (83%) were evaluated as being insufficient. In 4 cases, difficulties were reported for the effective implementation of the measures.

The Committee of Experts informed that, regarding the **promotion of civil society´s participation in the follow-up of public administration**, "62 measures were recommended. No information on progress with respect to implementation was reported for 26 of them (42%); 28 of them (45%) require additional attention; and the remaining 8 (13%) were satisfactorily considered"[35]. According to the chapters, out of the total of 7 recommendations issued by the Committee on the subject, for 3 cases (42%) it is reported that there are measures in existence

31 Ibidem, p. 30
32 Ibidem, p. 30
33 TI Canada reported that the measures are insufficient but did not report if any measures were adopted
34 Ibidem, p. 31
35 Ibidem, p. 31

to comply with the Committee's recommendations. All of them (100%) were evaluated as being insufficient.

According to the Second Hemispheric Report and in regard to the **measures for assistance and cooperation** "...91 measures were recommended. No information on progress with respect to implementation was reported for 49 of them (54%); 24 of them (26%) require additional attention; and the remaining 18 (20%) were satisfactorily considered"[36]. According to civil society, out of the total of 19 recommendations issued by the Committee on the subject, only in 7 cases (36%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of those 7 cases, 4 (57%) were evaluated as being insufficient.

The Committee's report evaluated the actions carried out by the countries regarding the **appointment of central authorities** and reported that "...29 measures were recommended. No information on progress with respect to implementation was reported for 14 of them (48%); 8 of them (28%) require additional attention; and the remaining 7 (13%) were satisfactorily considered"[37] Regarding the information provided by the chapters about the nine countries, out of the total of 4 recommendations issued by the Committee on the subject, for 3 cases (75%) it is reported that there are measures in existence to comply with the Committee's recommendations.

2.3.2 IMPLEMENTATION OF THE RECOMMENDATIONS FROM THE SECOND ROUND

The Committee of Experts has not yet evaluated the degree of compliance in the implementation of the recommendations from the second round; therefore, the following information reflects only the evaluation conducted by the chapters in each one of the countries.

From the information provided by the chapters, out of the total of 26 recommendations issued by the Committee on the **systems for hiring public officials**, for 22 of them (84%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of these 22, 16 (73%) were evaluated as being insufficient. In 11 cases, difficulties were reported for the effective implementation of the measures.

According to the chapter's reports, out of the total of 41 recommendations issued by the Committee on **systems for the procurement of goods and services**, for 27 cases (66%) it is reported that there are measures in existence to comply with the Committee's recommendations. Out of the 27 cases, 13 (48%) were evaluated as being sufficient.

36 Ibidem, p. 31
37 Ibidem, p. 31

According to the organizations participating in the survey, out of the total of 10 recommendations issued by the Committee regarding the **protection of public officials and citizens who report acts of corruption**, for only 2 cases (80%) is it reported that there are measures in existence to comply with the Committee's recommendations.

Out of the total of 15 recommendations about **acts of corruption**, in 8 cases (53%) there was a reported lack of measures to comply with the Committee's recommendations.

According to the chapters' reports on the nine countries, out of the total of 43 **general recommendations** issued by the Committee in the first and second reports, for 21 cases (49%) it is reported that there are measures in existence to comply with the Committee's recommendations. 11 of these (43%) were evaluated as being insufficient.

2.4 PARTICIPATION OF CIVIL SOCIETY

This section analyzes the participation of civil society organizations in the activities of the OAS and, in particular, in the MESICIC. This participation is widely encouraged and regulated in the OAS, especially through Resolutions CP/RES 759, CP/RES 840 y AG/RES 1915[38], and its relevance has been emphasized and formally encouraged in all Summits' declarations. However, the participation of civil society in the activities of the OAS is limited, and only 258 organizations, out of a universe of thousands, are formally registered with the Organization.

If we just consider the spaces for following-up on the mandates of the Summits regarding the fight against corruption, as those mainly within the group of institutions created with the existence of the IACAC, the participation of civil society organizations has also been guaranteed through Article 33 of the Rules and Regulations of the Committee of Experts[39]. Civil society is allowed, as long as it does not interfere with the national legislation, to respond to the same questionnaire as the states, and to present the results in the meetings of the Committee in which their country will be evaluated.

Even with this possibility, only 20 organizations participated in the first round and 35 in the second, with a predominant participation of Transparency International chapters. It is worth noting the improvements made by and greater adaptation of the organizations to the requirements established by the Committee of Experts for the presentation of independent reports from civil society. While in the first round three reports were not considered because

38 www.civil-society.oas.org/Pages/OASDocuments_ENG.htm
39 www.oas.org/juridico/spanish/segu_conf_concl.pdf

they were presented after the deadline, in the second round only one report was not considered, because the Committee considered that it did not fulfil one of the requirements of the regulations, according to the arguments presented by the respective state[40].

In the data collected for this study, the chapters consulted described their interaction with the hemispheric institutions and their participation in the activities organized by the different institutions of the Inter-American system that are involved in the fight against corruption[41]. The chapters regarded their interaction with the Committee of Experts as average, and the local experts regarded the interaction with the Summit Implementation Review Group, the Technical Secretariat of the MESICIC and review sub-groups as low. Regarding participation, four chapters identified the Committee of Experts as the body they had interacted with in several occasions, and in most cases, the chapters reported having no participation in activities organized by the SIRG, the Summit Office, the Technical Secretariat and the review sub-groups.

2. 5 COMPLIANCE OF MANDATES AT REGIONAL LEVEL

This section presents some data about compliance of the mandates from regional institutions like the Committee of Experts, the SIRG, the Conference of States Parties to the MESISIC, the Technical Secretariat of the MESICIC, and the Summit Office.

The **Committee of Experts of the MESICIC**[42] is the body responsible for the technical analysis of the implementation of the Convention of the States Parties and, among its functions, established in the Committee's Rules of Procedures, are: adoption of an annual work plan; selecting the provisions of the Convention to be evaluated; adopting a methodology for analysis; adopting the questionnaire for the selected provisions to be analyzed in each round; adopting the analysis reports related to each State Party and one Hemispheric report at the end of each round[43]. To fulfill these prerogatives, the Committee meets regularly and elaborates three types of reports generated from the information provided by the State Parties and the technical analysis of compliance with the agreement from the Convention. These are: the

40 The report presented by Transparencia Venezuela was rejected since the Venezuelan state based its position on a resolution from the Constitutional Court which said that, in the country, only those organizations that do not receive funding from abroad are civil society organizations

41 The evaluation conducted by the chapters produced data that is both provisional and of a guiding nature, since: a) the evaluation corresponds only to the nine chapters that participated in the study, which is probably insufficient to be considered as a quantitative evaluation; b) in some cases, the chapters did not provide information about some variables and/or some organizations. These two limitations force us to present the evaluations as provisional, highlighting only the maximum values obtained by the organizations

42 This section was drafted from the information available at www.oas.org/juridico/spanish/mesicic_com_expertos.htm

43 Based on the available Regulation at www.oas.org/juridico/spanish/mesicic_reglamento.pdf

Hemispheric Report, the National Progress Report and the Annual Progress Reports on the Implementation of the Convention.

In fulfilment of its functions, the Committee has met fourteen times and has elaborated two Hemispheric Reports, each corresponding to the two rounds that have taken place. The Committee publishes the National Progress Reports every year on its web page[44], but at the moment of the elaboration of this report it was not possible to corroborate the Annual Progress Reports. The Committee has also promoted and collaborated on the drafting of model legislation in relation to issues like declaration of income, protection of whistleblowers, standards of conduct, etc.[45]

In regard to its openness, accessibility and the degree of interaction, five chapters reported having medium interaction with the Committee of Experts and four declared having participated in two or more activities organized by the Committee since its inception. Five chapters reported that the Committee operates with an average level of openness and transparency and a great degree of accessibility to the information it produces.

The functions of the **Summit Implementation Review Group** (SIRG)[46] consist of monitoring the implementation of the provisions of the Summits and the elaboration of reports for the participant States. The Review Group does not assume any function related to the effective implementation of the Plans of Action established at the Summit, which is entrusted to the participant states[47]. The SIRG has published several reports related to the achievements made in the fulfilment of the mandates[48].

From the collected information, it can be concluded that the SIRG has held a great number of meetings (60) since its inception in 1995. However, the availability of information about the activities carried out during those meetings is irregular and in some cases, deficient. It is worth noting that the availability of information has improved with time but that the many meetings do not seem to reflect an exhaustive analysis of the degree of progress made in the countries on compliance with the mandates of the Summits. The information available indicates that the SIRG has not generated a clear methodology for the follow-up on the declarations and Plans of

44 The reports from the Committee of Experts can be found at www.oas.org/juridico/spanish/mesicic_com_expertos.htm

45 www.oas.org/juridico/spanish/mesicic_com_expertos.htm

46 This section has been elaborated based on the information available at www.summit-americas.org/SIRG/SIRG-MAIN-documents-spanish.htm

47 It is worth noting that in the study developed for the drafting of the report, no published documents were available that regulate the functions of the SIRG. Only the minutes of the meetings, where the activities conducted in the fulfillment of the functions are recorded in detail

48 www.summit-americas.org/Quebec-Follow%20Up/national%20reps-summ-span.htm

Action from the Summits. In regard to its openness, accessibility and degree of interaction, five chapters reported having low interaction with the SIRG, six chapters declared that they have not participated in activities organized by the body, four considered the openness and transparency of the body as average, and four regarded as high the level of accessibility to the information it produced.

The **Conference of States Parties to the MESICIC**[49] is the body with the authority and the general responsibility for implementing the Mechanism and the political forum to address the issues of hemispheric cooperation to fight corruption, according to the Report of Buenos Aires and the decisions from the Conference.

According to its regulations, it must meet every two years and to this date it has met only twice (2004 and 2006). Recommendations have resulted from these meetings to strengthen the MESICIC and the implementation of the United Nations Convention against Corruption[50].

Many of the measures recommended by the Conference have been implemented, but there are still important areas that are pending. For example, the implementation of country visits as part of the evaluation or giving greater visibility to the activities developed to fight corruption within the region. This last item is fundamental, since the MESICIC lacks the sanctioning instruments for non-compliance, and it is necessary that citizens know about the progress made in the implementation of anti-corruption conventions.

Regarding its openness, accessibility and degree of interaction, five chapters reported having low interaction with the Conference of States Parties, four declared having participated in at least one activity organized by the Conference; five regarded the openness and transparency of the body as average, and four regarded as average the accessibility to the information it produces.

The **Secretariat of the Committee of Experts**[51] is operated by the Department of Legal Cooperation of the Secretariat of Legal Affairs of the General Secretariat of the OAS. The functions of the Secretariat of the Committee of Experts are related to logistical and technical support for the development of the Committee's tasks. The Secretariat is, among other things, the body in charge of elaborating proposals about the methodology and the questionnaire utilized for the analysis of the implementation of the provisions of the Convention that are to be analyzed in a given round; support the sub-groups of experts throughout the process of

49 This section has been elaborated based on the information available at www.oas.org/juridico/spanish/mesicic_conf_est_parte.htm
50 www.oas.org/juridico/spanish/mesicic_conf_est_parte.htm
51 This section has been elaborated based on the information available at www.oas.org/juridico/spanish/mesicic_intro_sp.htm y www.oas.org

analyzing the information submitted by the States Parties; and developing the Hemispheric Report project. The Secretariat functions as a central point for coordination and contact between the experts as well as between the Committee and the Conference of States Parties, and the OAS bodies and other organizations or institutions.

Regarding its openness, accessibility and degree of interaction, six chapters reported having low interaction with the Technical Secretariat, four chapters declared not to have participated in activities organized by the Secretariat and three regarded the openness and transparency of the body as average, and regarded as good the level of accessibility to the information it produces.

The **Summits of the Americas Secretariat**[52] is the main entity within the General Secretariat of the OAS in charge of supporting the follow-up mechanisms of the Summits and coordinating the implementation of the mandates entrusted to the General Secretariat of the Organization. The Secretariat conducts activities to support the planning, implementation, dissemination, and follow-up of the mandates.

Regarding its openness, accessibility and degree of interaction, four chapters reported having a medium level of interaction with the body, while four others regarded as low the degree of interaction with the Summits Secretariat. Five chapters reported not having participated in activities organized by the Secretariat and four regarded the openness and transparency as being good; four other chapters regarded as good the accessibility to the information it produces, although the other four regarded it as average.

3 CONCLUSIONS

Firstly, regarding compliance at the national level of the anti-corruption mandates of the Summits of the Americas, it is worth highlighting that almost all the member States of the OAS have signed and ratified the Inter-American Convention against Corruption[53] and the United Nations Convention against Corruption[54]. Only a few countries have not joined the Follow-up Mechanism of the Inter-American Convention, something that we want to underscore as being fundamental for the letter of the treaty to become effective[55].

52 This section has been elaborated based on the information available at www.summit-americas.org/AboutUs-esp.htm

53 All the member States of the OAS except Barbados

54 www.unodc.org/unodc/en/treaties/CAC/signatories.html

55 Antigua and Barbuda, Dominica, St. Kitts and Nevis, and St. Lucia

Regarding compliance of the obligation of the states to report their advances in the implementation of the mandates from the Summits of the Americas, we emphasize the fact that the information provided by the states is irregular and not uniform. While some countries have presented five progress reports, others have presented only one. This situation is intensified if we analyze the content of what the countries report. While it is true that for this report we took only nine countries[56] as reference, we corroborated that, while some countries provided very little information about the actions taken to fight corruption, others presented reports that were more complete and more in line with the information provided in the follow-up mechanism of the IACAC. This shows a high degree of disconnection and a lack of articulation between, on one hand, the two regional bodies in charge of monitoring and follow-up (SIRG and Committee of Experts), and on the other, between the bodies in charge at national level: the national experts (Committee of Experts of the IACAC) and national coordinators (SIRG). The cases analyzed show that there is no standardization or uniformity regarding what the countries should present to the Summit Implementation Review Group. This is, without a doubt, an issue that should be addressed in order to achieve greater inter-institutional coordination both at regional and national levels. Because of the lack of standardization it is upon the discretion of the countries to decide which commitments to report about: while some countries present a general overview of the actions conducted on the issue, others presented only those actions carried out in order to comply with the commitments made in the most recent Plan of Action, but not those commitments made in the the previous ones. The available information would seem to indicate that the SIRG has not generated a clear methodology to follow-up on the Declarations and Plans of Action from the Summits, and that it would be of fundamental importance to advance toward a uniform presentation of the follow-up information from the mandates.

Regarding the information provided by the chapters about the nine countries, out of the total of 249 recommendations issued by the Committee of Experts in the First and Second rounds, the existence of measures to comply with the Committee's recommendations in 148 cases (59%) were reported. This information, while auspicious and positive, becomes relative once the sufficiency of the adopted measures is evaluated: out of the total of 249 measures, only 20% are regarded as being sufficient. The highest level of sufficiency and compliance with the recommendations is found in those aimed at strengthening the oversight bodies, for which the chapters reported compliance with 66% of the recommendations issued. The information provided by the chapters shows certain advances regarding regulatory or formal adjustments related to the recommendations, but these advances do not seem to be accompanied by the effective implementation of the content of the recommendation and therefore of the

56 Argentina, Bolivia, Canada, El Salvador, Nicaragua, Mexico, Paraguay, Peru, and Trinidad and Tobago

implementation of the IACAC, which could result in substantive progress in the fight against corruption[57].

Regarding compliance with the functional mandates of the hemispheric institutions, it is worth noting the high degree of performance of the Committee of Experts. At the time of the putting together of this report, the Committee had held 14 meetings in which they conducted the evaluation of the two follow-up rounds on the countries adhering to the Follow-up Mechanism. The Committee complies with its obligation of evaluating the advance reports, adopting the national reports and drafting the hemispheric reports. It has also developed model legislation about various provisions of the Convention, although this action has only been carried out for the provisions evaluated in the first round. The Committee has advanced in the analysis of two issues of collective interest, even though it is only for the first round and should perhaps be deepened or continued. It would be interesting to evaluate the impact of what was debated during the first issue of collective interest (public hiring) and what is reported in the second round of analysis about the systems for procurement of goods and services. Another pending issue is the recognition of civil society as an observer at the meetings of the Committee of Experts and not limiting their presence to the presentation of their report, as well as the urgency of modifying Article 34 of the Rules and Regulations of the MESICIC so that the participation of civil society would not be dependent upon national legislation.

From the collected information, it can be concluded that the Summit Implementation Review Group has held a great number of meetings (60) since its inception in 1995. However, the reporting of information about the activities carried out during those meetings is irregular and in some cases, deficient. It is worth noting that the availability of information has improved with time but the many meetings do not seem to reflect an exhaustive analysis of the degree of progress made by the countries in compliance with the mandates of the Summits.

Many of the measures recommended by the Conference of States Parties to the MESICIC to strengthen it have been implemented. However, there are still important areas pending, for example, the implementation of country visits as part of the evaluation or giving greater visibility to the activities developed to fight corruption within the region. This is fundamental, since the follow-up mechanism lacks sanctioning instruments for non-compliance, and it is therefore necessary that citizens in each of the States Parties know about the degree of progress made in the implementation of the Inter-American Convention. It is also important to

57 It is worth remembering that the evaluation was conducted with only nine countries, and there could be some bias intervening in the general image described here. It is also important to point out that the Second Hemispheric Report by the Committee of Experts collected the reports and information sent from the experts to the Committee about the recommended measures and not about the recommendations. This report was supported by the survey of the recommendations, and not the measures

move forward with the implementation of the United Nations Convention against Corruption, and to define a monitoring system in the next Conference of States Parties (November 2009).

4 WHAT MEASURES NEED TO BE TAKEN TO ADVANCE AND STRENGTHEN THE IMPLEMENTATION OF THE MANDATES OF THE SUMMITS?

In this last section we present the recommendations resulting from the evaluation conducted by the chapters both at thematic and procedural level in order to advance the implementation of the mandates of the Summits of the Americas related to the fight against corruption.

a. Advancing the implementation of the Summits' mandates

- Increase coordination between the SIRG, the MESICIC and all regional institutions that work on issues related to the fight against corruption, promotion of transparency and access to information within the OAS so that the Summit's follow-up mechanism can be strengthened and complemented through the advances made in other entities where monitoring, follow-up and evaluation is conducted.
- Increase inter-institutional cooperation and strengthen internal mechanisms of collaboration between the authorities and public officials at different levels of government within the States Parties (federal, provincial, municipal) to follow-up on the mandates established in the Summits of the Americas.
- Strengthen opportunities for exchange, training and technical assistance between the states and Civil Society Organizations.
- Establish multi-sectoral teams integrated by representatives of civil society and government to disseminate information about the relevance of the Summits and the need to advance compliance with the mandates.
- Strengthen the participation of civil society and implement mechanisms to achieve this objective, such as the creation of proper and well-disseminated standards, rules and timelines for the proper participation of civil society in the development, debate and establishment of the agenda and the action plans of the Summits of the Americas.
- Encourage greater citizen participation in the control of compliance of the mandates.
- Create specific mechanisms to measure compliance with the various Summit commitments, and include the participation of civil society in the follow-up of the implementation.
- Ensure effective access to the documentation and information needed to participate in the Summit process.

b. Strengthen, institutionalize and improve the activities and performance of the MESICIC

- Implement the Rules and Regulations of the MESICIC regarding the system of visits from the Experts' to the countries during the review process.
- Modify the regulation (Art. 34) regarding limits imposed on the participation of civil society in the MESICIC.
- Allow civil society to present their report after the presentation of the country report, so that they can witness the official response in order to bring their responses closer to the Committee of Experts.
- Have a consensus about a system of basic indicators that would allow the monitoring of the mandates of the Convention.
- Contribute to the development of technical cooperation mechanisms between States Parties and civil society.
- Sensitize public officials about the importance of collaborating with civil society in the provision of information about the degree of advancement in compliance with the recommendations issued by the Committee of Experts.
- Improve financial support for the participation of civil society in the MESICIC.
- Improve follow-up of recommendations at local and regional level, and consider the possibility of imposing "symbolic" sanctions to States that do not comply with the recommendations of the MESICIC and provide "symbolic" accolades to the countries that show greater effort to adjust to the MESICIC recommendations.
- Instruct the States Parties to publish and disseminate the reports from the MESICIC at the national level.
- Define the profile that MESICIC experts should meet in order to ensure that they have the necessary technical knowledge to be able to evaluate their peers.
- Incorporate information technologies to guarantee greater citizen participation in the evaluation of the degree of advancement in the implementation of the Convention.

ANEX

COMPILATION OF MANDATES ON ANTICORRUPTION FROM SUMMITS AND PLANS OF ACTIONS

I Summit of the Americas, Miami, Florida – December 1994

Declaration of Principles

"Partnership for Development and Prosperity: Democracy, Free Trade and Sustainable Development in the Americas...Effective democracy requires a comprehensive attack on corruption as a factor of social disintegration and distortion of the economic system that undermines the legitimacy of political institutions."

Plan of Action

"The heads of state and government participating in the 1994 Summit of the Americas in Miami, Florida, desirous of furthering the broad objectives set forth in their Declaration of Principles and mindful of the need for practical progress on the vital tasks of enhancing democracy, promoting development, achieving economic integration and free trade, improving the lives of their people, and protecting the natural environment for future generations, affirm their commitment to this Plan of Action."

Combating Corruption

"The problem of corruption is now an issue of serious interest not only in this Hemisphere, but in all regions of the world. Corruption in both the public and private sectors weakens democracy and undermines the legitimacy of governments and institutions. The modernization of the state, including deregulation, privatization and the simplification of government procedures, reduces the opportunities for corruption. All aspects of public administration in a democracy must be transparent and open to public scrutiny.

Governments will:

- Promote open discussion of the most significant problems facing government and develop priorities for reforms needed to make government operations transparent and accountable.
- Ensure proper oversight of government functions by strengthening internal mechanisms, including investigative and enforcement capacity with respect to acts of

corruption, and facilitating public access to information necessary for meaningful outside review.

- Establish conflict of interest standards for public employees and effective measures against illicit enrichment, including stiff penalties for those who utilize their public position to benefit private interests.
- Call on the governments of the world to adopt and enforce measures against bribery in all financial or commercial transactions with the Hemisphere; toward this end, invite the OAS to establish liaison with the OECD Working Group on Bribery in International Business Transactions.
- Develop mechanisms of cooperation in the judicial and banking areas to make possible rapid and effective response in the international investigation of corruption cases.
- Give priority to strengthening government regulations and procurement, tax collection, the administration of justice and the electoral and legislative processes, utilizing the support of the IDB and other international financial institutions where appropriate.
- Develop within the OAS, with due regard to applicable treaties and national legislation, a hemispheric approach to acts of corruption in both the public and private sectors that would include extradition and prosecution of individuals so charged, through negotiation of a new hemispheric agreement or new arrangements within existing frameworks for international cooperation."

II Summit of the Americas, Santiago, Chile – April 1998

Declaration of Principles

"We, the democratically-elected Heads of State and Government of the countries of the Americas, have met in Santiago, Chile, in order to continue the dialogue and strengthen the cooperation we began in Miami in December 1994. Since that time, significant progress has been made in the formulation and execution of joint plans and programs in order to take advantage of the great opportunities before us. We reaffirm our will to continue this most important undertaking, which requires sustained national efforts and dynamic international cooperation. ....We will lend new impetus to the struggle against corruption, money laundering, terrorism, weapons trafficking, and the drug problem, including illicit use, and work together to ensure that criminals do not find safe haven anywhere in the Hemisphere. We are determined to persevere in this direction."

Plan of Action

"We, the democratically elected Heads of State and Government of the Americas, recognizing the need to make a collective effort that complements the actions being developed and executed at the national level to improve the economic well-being and the quality of life of our peoples, mindful of our commitment to the continued implementation of the Miami Plan of Action, affirm our resolute determination to carry out this Plan of Action, which constitutes a

body of concrete initiatives intended to promote the overall development of the countries of the Hemisphere and ensure access to and improve the quality of education, promote and strengthen democracy and the respect for human rights, deepen economic integration and free trade and eradicate poverty and discrimination. We have adopted this Plan of Action conscious that all the initiatives are inter-related and equally important to the attainment of our common endeavors."

Corruption

"Governments will:

- Resolutely support the "Inter-American Program to Combat Corruption" and implement the actions established therein, particularly the adoption of a strategy to achieve prompt ratification of the 1996 Inter-American Convention against Corruption, the drafting of codes of conduct for public officials, in accordance with respective legal frameworks, the study of the problem of laundering assets or proceeds derived from corruption, and the promotion of information campaigns on the ethical values that sustain the democratic system.
- Sponsor in Chile a Symposium on Enhancing Probity in the Hemisphere to be held no later than August 1998, in order to consider, among other topics, the scope of the Inter-American Convention against Corruption, and the implementation of the aforementioned program
- They will also resolutely support the holding of workshops sponsored by the Organization of American States (OAS) to disseminate the provisions set forth in the Inter-American Convention against Corruption.
- Foster within the OAS framework, and in accordance with the mandate set forth in the Inter-American Program to Combat Corruption, appropriate follow-up on the progress achieved under the Inter-American Convention against Corruption.
- Promote in their domestic legislation the obligation for senior public officials, and those at other levels when the law so establishes, to declare or disclose their personal assets and liabilities to the appropriate agency.
- Encourage the approval of effective and specific measures to combat all forms of corruption, bribery, and related unlawful practices in commercial transactions, among others."

III Summit of the Americas, Quebec City, Canada – April 2001

Declaration of Principles

"...Acknowledging that corruption undermines core democratic values, challenges political stability and economic growth and thus threatens vital interests in our Hemisphere, we pledge to reinvigorate our fight against corruption. We also recognize the need to improve the conditions for human security in the Hemisphere..."

Fight against Corruption

"Recognizing that corruption gravely affects democratic political institutions and the private sector, weakens economic growth and jeopardizes the basic needs and interests of a country's most underprivileged groups, and that the prevention and control of these problems are the responsibility of government as well as legislative and judicial institutions:

- Consider signing and ratifying, ratifying, or acceding to, as soon as possible and as the case may be, the Inter-American Convention Against Corruption, in accordance with their respective legal frameworks, and promote effective implementation of the Convention by means of, inter alia, the Inter-American Program for Cooperation in the Fight Against Corruption and associated technical cooperation programs and activities, including those of relevant multilateral organizations and MDBs, in the area of good governance and in the fight against corruption, as well as programs which each country designs and implements in accordance with national laws, by its own appropriate bodies that may require assistance;
- Support the establishment as soon as possible, taking into consideration the recommendation of the OAS, of a follow-up mechanism for the implementation of the Inter-American Convention Against Corruption by States Parties to this instrument;
- Support strengthening the Inter-American Network of Institutions and Experts in the Fight Against Corruption in the context of the OAS, as well as initiatives aimed at strengthening cooperation among ethics officials and members of civil society;
- Strengthen, in cooperation with multilateral organizations and MDBs, where appropriate, the participation of civil society in the fight against corruption, by means of initiatives that promote the organization, training and linkage of citizens groups in the context of concrete projects which promote transparency and accountability in governance;
- Continue to promote policies, processes and mechanisms that protect the public interest, the use of disclosure of assets mechanisms for public officials in order to avoid possible conflicts of interest and incompatibilities, as well as other measures that increase transparency."

Extraordinary Summit, Monterrey, Mexico – January 2004[58]

IV Summit of the Americas, Mar del Plata, Argentina – Nov. 2005

58 For the anti-corruption and transparency commitments, please see pages 9 and 10 http://www.oas.org/juridico/english/summit_decl_nuevo_leon.pdf

"……d) A legal framework that upholds the rule of law, transparency, and access to justice; reinforces impartiality and independence of judicial institutions; prevents and combats impunity and corruption in both the public and the private spheres; and fights international crime;….."

"…..66. Accountability is a key instrument to achieve transparency and efficiency in the use of resources administered by our governments. Fighting corruption is a key aspect of strengthening democracy and economic growth. For this reason, we call upon states to implement the Inter-American Convention against Corruption and participate fully in the Follow-up Mechanism for the Implementation of the Inter-American Convention against Corruption. We stress the importance of the oversight role of legislatures, as appropriate, in the fight against corruption and the importance of promoting inter-parliamentary exchanges to encourage the development of national and international strategies to fight against corruption…"

Plan of Action

HEMISPHERIC COOPERATION

"….To identify, before December 2006, specific initiatives for cooperation, and the exchange of experiences in the development of technical skills in our countries that contribute to the full application of the provisions of the Inter-American Convention Against Corruption, and the strengthening of its Implementation Follow-up Mechanism (MESICIC), giving special consideration to the recommendations to that effect arising from the first round of said Mechanism."

www.transparency.org/tilac



International Secretariat
Alt-Moabit 96
10559 Berlin, Germany
Phone: +49 - 30 - 34 38 200
Fax: +49 - 30 - 34 70 39 12
ti@transparency.org
www.transparency.org